

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 585

BY BUSINESS COMMITTEE

AN ACT

RELATING TO ELECTRICAL, PLUMBING, AND HEATING, VENTILATION, AND AIR CONDITIONING INSPECTIONS; AMENDING CHAPTER 10, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-1004A, IDAHO CODE, TO PROVIDE FOR CERTAIN INSPECTION REQUIREMENTS; AMENDING CHAPTER 26, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-2626A, IDAHO CODE, TO PROVIDE FOR CERTAIN INSPECTION REQUIREMENTS; AMENDING CHAPTER 50, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-5020A, IDAHO CODE, TO PROVIDE FOR CERTAIN INSPECTION REQUIREMENTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 10, Title 54, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 54-1004A, Idaho Code, and to read as follows:

54-1004A. INSPECTIONS -- TIMELINESS -- REFUNDS. (1) If an inspection requested by a permit holder is not performed within forty-eight (48) business hours, such permit holder shall be authorized to hire a third-party inspector to perform such inspection. The permit holder or third-party inspector shall notify the division or local government that such inspection is being completed by a third-party inspector. The permit holder shall provide a copy of the results of the completed inspection to the division or local government. A permit holder who obtains a third-party inspection under this section shall be refunded any fee, or portion thereof, that the permit holder paid to the division or local government for such inspection. If a local government contracts with and pays the division, county, or third party for an inspection that requires a refund pursuant to this section, the division, county, or third party shall be responsible for refunding the permit holder.

(2) The division or a local government shall refund ten percent (10%) of the fees, or the portion thereof, paid by a permit holder for an inspection if an inspector or electrical code administrator:

- (a) Conducts an inspection on the work relating to the permit;
- (b) Determines that the work has failed an inspection; and
- (c) Fails to, within three (3) business days, provide the permit holder or his agent with a reason for the failure of such inspection pursuant to the provisions of this chapter.

(3) A third-party inspector under this section shall meet the qualifications prescribed by section 54-1019, Idaho Code, and shall conduct the inspection in substantial accord with the applicable jurisdiction's standards provided by law, rule, or ordinance.

1 SECTION 2. That Chapter 26, Title 54, Idaho Code, be, and the same is
2 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
3 ignated as Section 54-2626A, Idaho Code, and to read as follows:

4 54-2626A. INSPECTIONS -- TIMELINESS -- REFUNDS. (1) If an inspection
5 requested by a permit holder is not performed within forty-eight (48) busi-
6 ness hours, such permit holder shall be authorized to hire a third-party in-
7 spector to perform such inspection. The permit holder or third-party in-
8 spector shall notify the division or local government that such inspection
9 is being completed by a third-party inspector. The permit holder shall pro-
10 vide a copy of the results of the completed inspection to the division or lo-
11 cal government. A permit holder who obtains a third-party inspection under
12 this section shall be refunded any fee, or portion thereof, that the permit
13 holder paid to the division or local government for such inspection. If a lo-
14 cal government contracts with and pays the division, county, or third party
15 for an inspection that requires a refund pursuant to this section, the divi-
16 sion, county, or third party shall be responsible for refunding the permit
17 holder.

18 (2) The division or a local government shall refund ten percent (10%) of
19 the fees, or the portion thereof, paid by a permit holder for an inspection if
20 an inspector or plumbing code administrator:

21 (a) Conducts an inspection on the work relating to the permit;

22 (b) Determines that the work has failed an inspection; and

23 (c) Fails to, within three (3) business days, provide the permit holder
24 or his agent with a reason for the failure of such inspection pursuant to
25 the provisions of this chapter.

26 (3) A third-party inspector under this section shall meet the qualifi-
27 cations prescribed by section 54-2627, Idaho Code, and shall conduct the in-
28 spection in substantial accord with the applicable jurisdiction's standards
29 provided by law, rule, or ordinance.

30 SECTION 3. That Chapter 50, Title 54, Idaho Code, be, and the same is
31 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
32 ignated as Section 54-5020A, Idaho Code, and to read as follows:

33 54-5020A. INSPECTIONS -- TIMELINESS -- REFUNDS. (1) If an inspection
34 requested by a permit holder is not performed within forty-eight (48) busi-
35 ness hours, such permit holder shall be authorized to hire a third-party in-
36 spector to perform such inspection. The permit holder or third-party in-
37 spector shall notify the division or local government that such inspection
38 is being completed by a third-party inspector. The permit holder shall pro-
39 vide a copy of the results of the completed inspection to the division or lo-
40 cal government. A permit holder who obtains a third-party inspection under
41 this section shall be refunded any fee, or portion thereof, that the permit
42 holder paid to the division or local government for such inspection. If a lo-
43 cal government contracts with and pays the division, county, or third party
44 for an inspection that requires a refund pursuant to this section, the divi-
45 sion, county, or third party shall be responsible for refunding the permit
46 holder.

1 (2) The division or a local government shall refund ten percent (10%) of
2 the fees, or the portion thereof, paid by a permit holder for an inspection if
3 an inspector or mechanical code administrator:

4 (a) Conducts an inspection on the work relating to the permit;

5 (b) Determines that the work has failed an inspection; and

6 (c) Fails to, within three (3) business days, provide the permit holder
7 or his agent with a reason for the failure of such inspection pursuant to
8 the provisions of this chapter.

9 (3) A third-party inspector under this section shall meet the qualifi-
10 cations prescribed by section 54-5021, Idaho Code, and shall conduct the in-
11 spection in substantial accord with the applicable jurisdiction's standards
12 provided by law, rule, or ordinance.

13 SECTION 4. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after
15 July 1, 2026.